THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

SPECIAL BROAD FORM COMMERCIAL GENERAL LIABILITY ENDORSEMENT

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

This endorsement expands coverage provided under CG 00 01. You may use the index to locate these coverage features quickly:

INDEX

SUBJECT	PAGE
Coverage A (Bodily Injury and Property Damage)	**2**
01. Expected or Intended Injury	**2**
02. Non-owned aircraft	**2**
03. Non-owned Watercraft	**2**
04. Property Damage Liability - Borrowed Equipment	**2**
05. Property Damage Liability - Elevators	**2**
06. Fire, Lightning or Explosion Damage	**2**
Coverage C (Medical Payments)	**3**
07. Medical Payments	**3**
Supplementary Payments (Coverages A and B)	**3**
08. Supplementary Payments	**3**
Who is an Insured	**3**
09. Additional Insureds by Contract, Agreement or Permit	**3**
10. Additional Insured - Broad Form Vendors	**4**
11. Broad Form Named Insured	**5**
12. Newly Formed or Acquired Organizations	**5**
13. Additional Insured - Volunteers	**5**
Conditions	**6**
14. Unintentional Failure to Disclose Hazards	**6**
15. Duties in the Event of Occurrence, Offense, Claim or Suit	**6**
16. Other Insurance - Primary Additional Insured	**6**
17. Other insurance - You are an Additional Insured on Another's Policy	**7**
Definitions	**7**
18. Mental Anguish	**7**
19. Incidental Malpractice Liability	**7**
20. Impaired Property	**8**
21. Insured Contract	**8**
22. Mobile Equipment Redefined	**9**
23. Personal Injury	**9**

© ITT Hartford Insurance Group, 1996
(Includes copyrighted material of Insurance Services Office
with its permission. Copyright, Insurance Services Office, 1994)

COVERAGE A

1. EXPECTED OR INTENDED INJURY

Exclusion **a**. of **COVERAGE A** (Section I) is replaced by the following:

a. "Bodily injury" or "property damage" expected or intended from the standpoint of the insured.

This exclusion does not apply to "bodily injury" or "property damage" resulting from the use of reasonable force to protect persons or property.

2. NON-OWNED AIRCRAFT

a. Exclusion **g.** is changed so that **COVERAGE A** (Section I) applies to an aircraft that is:

(1) Hired, chartered or loaned with a paid crew; but

(2) Not owned by any insured.

b. This provision **2.** does not apply if the insured has any other insurance for "bodily injury" or "property damage" liability that would also be covered under this provision, whether the other insurance is primary, excess, contingent or on any other basis. In that case, this provision **2.** does not provide any insurance.

3. NON-OWNED WATERCRAFT

a. Exclusion **g.** of **COVERAGE A** (Section I) does not apply to any watercraft under **51 feet** long that is neither:

(1) Owned by you; nor

(2) Being used to carry persons for a charge.

b. This provision **3.** applies to any person, who with your expressed or implied consent, either uses or is responsible for the use of the watercraft.

c. This provision **3.** does not apply if the insured has any other insurance for "bodily injury" or "property damage" liability that would also be covered under this provision, whether the other insurance is primary, excess, contingent or on any other basis. In that case, this provision **3.** does not provide any insurance.

4. PROPERTY DAMAGE LIABILITY - BORROWED EQUIPMENT

a. Exclusion **j.** of **COVERAGE A** (Section I) is amended as follows:

Paragraph **(4)** of this exclusion does not apply to "property damage" to borrowed equipment while not being used to perform operations at the job site.

b. The insurance afforded by reason of this provision **4.** is excess over any other valid and collectible property insurance (including any deductible portion thereof) available to the insured whether primary, excess, contingent or on any other basis, and the **OTHER INSURANCE** condition is changed accordingly.

5. PROPERTY DAMAGE LIABILITY - ELEVATORS

The insurance for "property damage" liability is also subject to the following:

a. Paragraphs **(3)** and **(4)** of exclusion **j.** of **COVERAGE A** (Section I) do not apply to the use of elevators.

b. The insurance afforded by reason of this provision **5.** is excess over any valid and collectible property insurance (including any deductible portion thereof) available to the insured whether primary, excess, contingent or on any other basis, and the **OTHER INSURANCE** condition is changed accordingly.

6. FIRE, LIGHTNING OR EXPLOSION DAMAGE

a. The word **fire** is changed to **fire, lightning or explosion** where it appears in:

(1) The Limits of Insurance section of the Declarations;

(2) Paragraph **6.** of **LIMITS OF INSURANCE** (Section III); and

(3) Paragraph **b.** of the **OTHER INSURANCE** Condition.

b. As respects the definition of "insured contract" in **DEFINITIONS** (Section V), as amended by this endorsement, paragraph **a.** is replaced by the following:

a. A contract for a lease of premises;

Any coverage afforded by this replacement of paragraph **a.** will be subject to paragraph **6.** of **LIMITS OF INSURANCE** (Section III).

c. The last paragraph of **COVERAGE A** (Section I) (after the exclusions) is replaced by the following:

Exclusions **c.** through **n.** do not apply to damage by fire, lightning or explosion to premises rented to you or temporarily occupied by you with permission of the owner. A separate limit of insurance applies to this coverage as described in **LIMITS OF INSURANCE** (Section III).

d. The Limit of Insurance shown in the Declarations will apply to all damage proximately caused by the same event, whether such damage results from fire, lightning or explosion or any combination of the three.

e. The Fire Damage Limit in Paragraph **6.** of **LIMITS OF INSURANCE** (Section III), is replaced by a new Fire, Lightning and Explosion Limit, which will be subject to all of the terms of **LIMITS OF INSURANCE** (Section III). The new Fire, Lightning or Explosion Limit is the higher of:

(1) **$300,000**; or

(2) The amount shown in the Declarations for Fire Damage Limit.

f. This provision **6.** does not apply if Fire Damage Legal Liability of **COVERAGE A** (Section I) is excluded either by the provisions of the Coverage Part or by endorsement.

COVERAGE C

7. MEDICAL PAYMENTS

a. In Paragraph **a. (2)** of the insuring agreement of **COVERAGE C** (Section I), **one year** is changed to **three years.**

b. The Medical Expense Limit in Paragraph **7.** of **LIMITS OF INSURANCE** (Section III) is replaced by a new Medical Expense Limit, which will be subject to all the terms of **LIMITS OF INSURANCE** (Section III).

The new Medical Expense Limit is the higher of:

(1) **$10,000**; or

(2) The amount shown in the Declarations for Medical Expense Limit.

c. This provision **7.** does not apply if **COVERAGE C. MEDICAL PAYMENTS** is excluded either by the provisions of the Coverage Part or by endorsement.

SUPPLEMENTARY PAYMENTS (COVERAGES A and B)

8. SUPPLEMENTARY PAYMENTS

In the SUPPLEMENTARY PAYMENTS - COVERAGES A and B provision:

(1) The limit for the cost of bail bonds is changed from **$250** to **$1,000**; and

(2) The limit for loss of earnings is changed from **$100** a day to **$500** a day.

WHO IS AN INSURED

9. ADDITIONAL INSUREDS BY CONTRACT, AGREEMENT OR PERMIT

a. WHO IS AN INSURED (Section II) is amended to include as an insured any person or organization with whom you agreed, because of a written contract or agreement or permit, to provide insurance such as is afforded under this policy, but only with respect to your operations, "your work" or facilities owned or used by you.

b. This provision **9.** does not apply:

(1) Unless the written contract or agreement has been executed or permit has been issued prior to the "bodily injury," "property damage," "personal injury" or "advertising injury;"

(2) To any person or organization included as an insured under provision **10**.; or

(3) To any person or organization included as an insured by an endorsement issued by us and made a part of this Coverage Part.

c. When an engineer, architect or surveyor becomes an insured under provision **9. a.**, the following additional exclusion applies:

"Bodily injury," "property damage," "personal injury" or "advertising injury" arising out of the rendering of or the failure to render any professional services by or for you, including:

(1) The preparing, approving, or failing to prepare or approve maps, drawings, opinions, reports, surveys, change orders, designs or specifications; and

(2) Supervisory, inspection, or engineering services.

d. When a lessor of leased equipment becomes an insured under provision **9. a.**, the following additional exclusions apply:

(1) To any "occurrence" which takes place after the equipment lease expires; or

(2) To "bodily injury" or "property damage" arising out of the sole negligence of the lessor.

e. When owners or other interests from whom land has been leased become an insured under provision **9. a.**, the following additional exclusions apply:

(1) Any "occurrence
" which takes place after you cease to lease that land; or

(2) Structural alterations, new construction or demolition operations performed by or on behalf of the owners or other interests from whom land has been leased.

f. When managers or lessors of premises become an insured under provision **9. a**., the following additional exclusions apply:

(1) Any "occurrence" which takes place after you cease to be a tenant in that premises; or

(2) Structural alterations, new construction or demolition operations performed by or on behalf of the manager or lessors of the premises.

10. ADDITIONAL INSURED - BROAD FORM VENDORS

a. WHO IS AN INSURED (Section II) is amended to include any person or organization with whom you agreed, because of a written contract or agreement to provide insurance, but only with respect to "bodily injury" or "property damage" arising out of "your products" which are distributed or sold in the regular course of the vendor's business, subject to the following additional exclusions:

(1) The insurance afforded the vendor does not apply to:

(i) "Bodily injury" or "property damage" for which the vendor is obligated to pay damages by reason of the assumption of liability in a contract or agreement. This exclusion does not apply to liability for damages that the vendor would have in the absence of the contract or agreement;

(ii) Any express warranty unauthorized by you;

(iii) Any physical or chemical change in the product made intentionally by the vendor;

(iv) Repackaging, unless unpacked solely for the purpose of inspection, demonstration, testing, or substitution of parts under instructions from the manufacturer, and then repackaged in the original container;

(v) Any failure to make such inspections, adjustments, tests or servicing as the vendor has agreed to make or normally undertakes to make in the usual course of business, in connection with the distribution or sale of the products;

(vi) Demonstration, installation, servicing or repair operations, except such operations performed at the vendor's premises in connection with the sale of the product;

(vii) Products which, after distribution or sale by you, have been labeled or relabeled or used as a container, part or ingredient of any other thing or substance by or for the vendor.

(2) This insurance does not apply to any insured person or organization, from whom you have acquired such products, or any ingredient, part or container,

entering into, accompanying or containing such products.

(3) This provision **10.** does not apply to any vendor included as an insured by an endorsement issued by us and made a part of this Coverage Part.

(4) This provision **10.** does not apply if "bodily injury" or "property damage" included within the "products-completed operations hazard" is excluded either by the provisions of the Coverage Part or by endorsement.

11. BROAD FORM NAMED INSURED

WHO IS AN INSURED (Section II) is amended by adding Paragraph **2. e.**:

2 e. Any subsidiary and subsidiary thereof, of yours which is a legally incorporated entity of which you own a financial interest of more than 50% of the voting stock on the effective date of the Coverage Part. The insurance afforded herein for any subsidiary not named in this Coverage Part as a named insured does not apply to injury or damage with respect to which an insured under this Coverage Part is also an insured under another policy or would be an insured under such policy but for its termination or the exhaustion of its limits of insurance.

12. NEWLY FORMED OR ACQUIRED ORGANIZATIONS

a. In paragraph **4. a.** of **WHO IS AN INSURED** (Section II), **90th day** is changed to **180th day.**

b. This provision **12.** does not apply if coverage for newly formed or acquired organizations is excluded either by the provisions of the Coverage Part or by endorsement.

13. ADDITIONAL INSURED - VOLUNTEERS

a. WHO IS AN INSURED (Section II) is amended to include as an insured any person(s) who are volunteer worker(s) for you, but only while acting at the direction of, and within the scope of their duties for you.

However, no volunteer workers(s) are insureds for:

(1) "Bodily injury," "property damage," "personal injury" or "advertising injury" arising out of rendering or the failure to render professional services by a volunteer worker.

(2) "Bodily injury" or "personal injury:"

(a) To you, to your partners or members (if you are a partnership or joint venture), to your other volunteer worker(s) or to your "employees" arising out of and in the course of their duties for you;

(b) To the spouse, child, parent, brother or sister of your volunteer worker(s) or your "employees" as a consequence of paragraph **(2) (a)** above; or

(3) "Property damage" to property:

(a) Owned, occupied or used by,

(b) Rented to, in the care, custody or control of, or over which physical control is being exercised for any purpose by:

you, any of your other volunteer worker(s), your "employees" or if you are a partnership or joint venture, any partner or member.

b. Exclusion **2. a.** of COVERAGE C (Section I) is replaced by the following:

2. a. To any insured, except volunteer workers.

c. When used in this provision **13.**, volunteer worker(s) means a person who is not paid a fee, salary or other compensation.

CONDITIONS

14. UNINTENTIONAL FAILURE TO DISCLOSE HAZARDS

It is agreed that based on our reliance on your representations as to existing hazards, if unintentionally you should fail to disclose all such hazards at the inception date of your policy, we shall not deny coverage under this Coverage Part because of such failure.

15. DUTIES IN THE EVENT OF OCCURRENCE, OFFENSE, CLAIM OR SUIT

a. The requirement in condition **2. a.** that you must see to it that we are notified of an "occurrence" or offense applies only when the "occurrence" or offense is known to:

(1) You, if you are an individual;

(2) A partner, if you are a partnership;

(3) A manager, if you are a limited liability company; or

(4) An "executive officer" or insurance manager, if you are a corporation.

b. The requirement in condition **2. b.** that you must see to it that we receive notice of claim or "suit" will not be considered breached unless the breach occurs after such claim or "suit" is known to:

(1) You, if you are an individual;

(2) A partner, if you are a partnership;

(3) A manager, if you are a limited liability company; or

(4) An "executive officer" or insurance manager, if you are a corporation.

16. OTHER INSURANCE - PRIMARY ADDITIONAL INSURED

a. If the written contract or agreement or permit requires this insurance to be primary for any person or organization with whom you agree to include in **WHO IS AN INSURED** (Section II) the **OTHER INSURANCE** Condition is replaced by the following:

If other valid and collectible insurance is available for a loss we cover under Coverage A of this Coverage Part, our obligations are limited as follows:

a. Primary insurance

This insurance is primary. We will not seek contributions from other insurance available to the person or organization with whom you agree to include in **WHO IS AN INSURED** (Section II), except when **b**. applies.

b. Excess Insurance

This insurance is excess over any of the other insurance whether primary, excess, contingent or on any other basis:

(1) That is Fire, Extended Coverage, Builder's Risk, Installation Risk or similar coverage for "your work;"

(2) That is Fire lightning or explosion insurance for premises rented to you; or temporarily occupied by you with permission of the owner; or

(3) If the loss arises out of the maintenance or use of aircraft, "auto" or watercraft to the extent not subject to Exclusion **g**. of **Coverage A** (Section I).

When this insurance is excess, we will have no duty under Coverage A or B to defend any claim or "suit" that any other insurer has a duty to defend. If no other insurer defends, we will undertake to do so, but we will be entitled to the insured's rights against all those other insurers.

When this insurance is excess over other insurance, we will pay only our share of the amount of the loss, if any, that exceeds the sum of:

(1) The total amount that all such other insurance would pay for the loss in the absence of this insurance; and

(2) The total of all deductible and self-insured amounts under all that other insurance.

We will share the remaining loss, if any, with any other insurance that is not described in this excess Insurance provision and was not bought specifically to apply in excess of the Limits of Insurance shown in the Declarations of this Coverage Part.

c. Method of Sharing

If all the other insurance permits contribution by equal shares, we will follow this method also. Under this approach each insurer contributes equal amounts until it has paid its applicable limit of insurance or none of the loss remains, whichever comes first.

If any or the other insurance does not permit contribution by equal shares, we will contribute by limits. Under this method, each insurer's contribution is based on the ratio of its applicable limits of insurance of all insurers.

b. This provision **16**. provides such insurance as is afforded under this policy, but only with respect to your operations, "your work" or facilities owned or used by you.

17. OTHER INSURANCE - YOU ARE ADDITIONAL INSURED ON ANOTHER PERSON'S OR ORGANIZATION'S POLICY

If you are an insured under **WHO IS AN INSURED** (Section II) Paragraph **b.** Excess Insurance of the **OTHER INSURANCE** Condition is replaced by the following:

This insurance is excess over any other insurance, whether primary, excess, contingent or on any other basis:

(1) That is Fire, Extended Coverage, Builders Risk, Installation Risk or similar coverage for "your work;"

(2) That is Fire, lightning or explosion insurance for premises rented to you or temporarily occupied by you with permission of the owner;

(3) If the loss arises out of the maintenance or use of aircraft, "autos" or watercraft to the extent not subject to Exclusion **g.** of **Coverage A** (Section I); or

(4) When any of the Named Insureds, under this Coverage Part, are additional insureds under a commercial general liability policy or similar insurance of another party.

When this insurance is excess, we will have no duty under Coverage A or B to defend any claim or "suit" that any other insurer has a duty to defend. If no other insurer defends, we will undertake to do so, but we will be entitled to the insured's rights against all those other insureds.

When this insurance is excess over other insurance, we will pay only our share of the amount of the loss, if any, that exceeds the sum of:

(1) The total amount that all such other insurance would pay for the loss in the absence of this insurance; and

(2) The total of all deductible and self-insured amounts under all that other insurance.

We will share the remaining loss, if any, with any other insurance that is not described in this Excess Insurance provision and was not bought specifically to apply in excess of the Limits of Insurance shown in the Declarations of this Coverage Part.

DEFINITIONS

18. MENTAL ANGUISH

The definition of "bodily injury" in **DEFINITIONS** (Section V) is replaced by the following:

"Bodily injury" means bodily injury, sickness or disease sustained by a person, including mental anguish or death resulting from any of these at any time.

19. INCIDENTAL MALPRACTICE LIABILITY

a. The definition of "bodily injury" in **DEFINITIONS** (Section V) is amended to include injury arising out of the rendering or failure to render medical or paramedical services to persons by any physician, dentist, nurse, emergency medical technician or paramedic who is employed by you to provide such services.

b. Paragraph **2. a. (1) (d)** of **WHO IS AN INSURED** (Section II) does not apply to nurses, emergency medical technicians or paramedics referred to in **a.** above.

c. Paragraph **(1)** of exclusion **e.** of **COVERAGE A** (Section I) does not apply to injury to the emotions or reputation of a person arising out of rendering of such services.

d. This provision 19**.** does not apply if you are engaged in the business or occupation of providing any services referred to in **a.** above.

20. IMPAIRED PROPERTY

a. The definition of "impaired property" in the **DEFINITIONS** (Section V) does not apply.

b. Exclusions **m.** and **n.** of **COVERAGE A** (Section I) are replaced by the following:

m. Loss of use of tangible property which has not been physically injured or destroyed, resulting from:

(1) A delay in or lack of performance by you or anyone on your behalf of any contract or agreement; or

(2) The failure of "your product" or "your work" to meet the level of performance, quality, fitness or durability warranted or represented by you or on your behalf.

This exclusion does not apply to loss of use of other tangible property resulting from the sudden and accidental physical injury to or destruction of:

(1) "Your product;" or

(2) "Your work;"

after such product or work has been put to its intended use.

n. Damages claimed for any loss, cost or expense incurred by you or others for the loss of use, withdrawal, recall, inspection, repair, replacement, adjustment, removal or disposal of:

(1) "Your product;"

(2) "Your work;" or

(3) Any property of which "your product" or "your work" forms a part;

if such product, work, or property is withdrawn or recalled from the market or from use by any person or organization because of a known or suspected defect, deficiency, inadequacy or dangerous condition in it.

21. INSURED CONTRACT

a. The definition of "insured contract" in the DEFINITIONS (Section V) is replaced by the following:

6. "Insured contract" means:

a. A contract for a lease of premises. However, that portion of the contract for a lease of premises that indemnifies any person or organization for damage by fire to premises while rented to you or temporarily occupied by you with permission of the owner is not an "insured contract;"

b. A sidetrack agreement;

c. Any easement or license agreement;

d. An obligation, as required by ordinance, to indemnify a municipality, except in connection with work for a municipality;

e. An elevator maintenance agreement;

f. That part of any other contract or agreement pertaining to your business (including an indemnification of a municipality in connection with work performed for a municipality) under which you assume the liability of another party to pay for "bodily injury" or "property damage" to a third person or organization.

Paragraph **f.** does not include that part of any contract or agreement:

(1) That indemnifies an architect, engineer or surveyor for injury or damage arising out of:

(a) Preparing, approving or failing to prepare or approve maps, shop drawings, opinions, reports, surveys, field orders, change orders, drawings and specifications; or

b. Giving directions or instructions, or failing to give them, if that is the primary cause of the injury or damage;

(2) Under which the insured, if an architect, engineer or surveyor, assumes liability for an injury or damage arising out of the insured's rendering or failure to render professional services, including those listed in (1) above and supervisory, inspection, architectural or engineering activities.

22. MOBILE EQUIPMENT REDEFINED

Paragraph **f. (1) (a) (b) (c)** does not apply to self-propelled vehicles of less than **1000** pounds gross vehicle weight.

23. PERSONAL INJURY

a. The following is added to the "personal injury" definition:

f. Discrimination or humiliation that results in injury to the feelings or reputation of a natural person, but only if such discrimination or humiliation is:

(1) Not done intentionally by or at the direction of:

(a) The insured; or

(b) Any "executive officer," director, stockholder, partner or member of the insured; and

(2) Not directly or indirectly related to the employment, prospective employment or termination of employment of any person or persons by any insured.

b. Paragraph **f.** of the definition "personal injury" of **DEFINITIONS** (Section V) does not apply in the states of Kansas or Nebraska.

c. This provision **23.** does not apply if **COVERAGE B. PERSONAL INJURY LIABILITY** is excluded either by the provisions of the coverage part or by endorsement.